

2:00 PM LINE 2

22-CIV-03785

ROBERT MORRIS VS. ISMAEL BASCO, ET AL

ROBERT MORRIS
ISMAEL BASCO

KENNETH C BROOKS
NICHOLE C BAER

Plaintiff's Motion for a Partial New Trial Pursuant to Code of Civil Procedure § 657

TENTATIVE RULING:

Plaintiff Robert Morris's "Motion for Partial Judgment Notwithstanding the Verdict in Favor of Plaintiff Robert Morris and Against Ismael Basco Pursuant to Civil Code § 629" (Partial JNOV Motion — Ismael Basco); "Motion for Partial Judgment Notwithstanding the Verdict in Favor of Plaintiff Robert Morris and Against Bernice Basco Pursuant to Civil Code § 629" (Partial JNOV Motion — Bernice Basco); and Motion for a Partial New Trial Pursuant to Code of Civil Procedure § 657" (New Trial Motion), are **DENIED**.

A. Background

On February 17, 2022, plaintiff Robert Morris and defendants Ismael Basco and Bernice Basco — who live next door to one another and had a history of low-level conflict regarding, among other things, street parking — got into an altercation. At approximately 7 p.m., Morris was sitting on a retaining wall on the corner of Paramount and Barcelona Avenues in the City of Milbrae. Morris was speaking to members of his two-way ham radio club. The Bascos were walking their golden retriever, Dexter, down Barcelona Avenue to the dog park.

Ismael Basco had Dexter on a four-foot leash. As they passed by Morris, Dexter began to sniff Morris's crotch. Morris, who had been bitten by a dog the year prior, and was afraid of dogs, testified in his deposition that he felt like he was being sexually assaulted by Dexter. Morris used his hand to push Dexter's head away from himself.

Both Morris and Bernice Basco were carrying containers of pepper spray. Morris to protect himself from dogs; and Bernice Basco to protect Dexter from coyotes at the dog park.

When Morris pushed Dexter away from himself, Bernice Basco reacted by pepper spraying him in the face. Morris sprang up and pepper sprayed Ismael Basco and then Morris touched or grabbed Bernice Basco and pepper sprayed her face. Ismael Basco reacted by pushing or shoving Morris away from Bernice Basco.

The following day, Morris walked approximately two miles to an emergency room where he was diagnosed with conjunctivitis, possibly due to chemical exposure. He also had some facial lacerations and a black eye. He was treated and told to return if he had further symptoms.

He did not return to the ER. His expert witness—who did not personally examine Morris but reviewed photographs — testified that the conjunctivitis was consistent with chemical exposure.

Morris filed a complaint asserting causes of action against each of the Bascos for battery (first cause of action “counts one and two”); intentional infliction of emotional distress (second cause of action); aiding and abetting against Bernice Basco (third cause of action); wrongful use of civil proceedings (fourth cause of action [withdrawn, relating to an unsuccessful civil harassment complaint filed by Bernice Basco]); and negligence (fifth cause of action). (Complaint, filed Sept. 15, 2022.) Defendants answered, generally denying the allegations and asserted certain affirmative defenses, including that plaintiff “provoked the altercation which he claims resulted in his injuries, if any there were;” self-defense; and defense of others. (Answer, filed Jan. 9, 2023, twentieth through twenty-second affirmative defenses.)

The case was tried to a jury beginning on July 6, 2026. The court discussed the substantive instructions, and the proposed special verdict form with counsel at length before the closing instructions were read and then given to the jury.

Before the jury retired to deliberate, the court instructed the jury on the law, including as to comparative fault (CACI 405); Battery (CACI 1300); self-defense or defense of others (CACI 1304); and aiding and abetting a tort (CACI 3610). (See Jury Instructions, filed July 17, 2026, at pp. 41, 43, 45-46.)

The jury was presented with a special verdict form to which the parties had agreed. (See Verdict, filed July 17, 2026.) The jury was asked in question 1, 1A and 1B: “On Robert Morris’s claim for Battery against defendant Ismael Basco and defendant Bernice Basco: 1A. Do you find that Ismael Basco touched or caused to be touched, Robert Morris, with the intent to harm or offend?; and 1B. Do you find that Bernice Basco touched or caused to be touched, Robert Morris, with the intent to harm or offend?” The jury answered “no” to Questions 1A and 1B.

As to question 9, 9A and 9B, the jury was asked: “9. On Robert Morris’ claim for Negligence against Ismael Basco and Bernice Basco: 9A. Was Ismael Basco negligent?; and 9B. Was Bernice Basco negligent?” The jury answered “yes” to Questions 9A and 9B. The jury further found that Ismael Basco’s and Bernice Basco’s “negligence [was] a substantial factor in causing harm to Robert Morris” and that Morris’s total damages for the Bascos’ negligence was \$3,000, reduced by Morris’s own negligence, which was a substantial factor in causing his harm. (Questions 11-12.) Finally, the jury found Ismael Basco 30% liable; Bernice Basco 60% liable; and Robert Morris 10% liable for Morris’s harm.

The jury awarded Morris \$0 damages as to the battery claim and \$3,000 in damages as to negligence. (Question 14.)

B. Morris’s Motions for Partial JNOV and a Partial New Trial

On July 31, 2026, Morris moved for partial JNOV as to the jury’s verdict on the battery cause of action pursuant to Code of Civil Procedure, section 629 (incorrectly referred to in the caption as Civil Code, § 629). Morris seeks a judgment in his favor and against each of the

defendants on the grounds that Ismael Basco intentionally hit or pushed him, and that Bernice Basco pepper-sprayed plaintiff without his consent. (See Partial JNOV Motions, at p. 2.)

Morris moved for a new trial based on the partial JNOV motions. That is he contends that the court should grant a new trial on the battery causes of action, and related damages claims, as well as the affirmative defense of self defense. (New Trial Mot., at pp. 2-3.)

Defendants oppose the motions. As to the partial JNOV motions, defendants argue that defendants testified that their actions were protective of one another and Dexter, and not intended to harm or offend plaintiff.

With respect to plaintiff's motion for a new trial, defendants argue that the "jury found that neither Ismael Basco nor Bernice Basco touched Plaintiff 'with the intent to harm or offend,'" that they testified that their "conduct was protective, not intentional;" and that the jury's verdict finding was supported by the evidence. (New Trial Opp. at p. 1.) Defendants further argue that plaintiff has not identified "any misconduct, error in law, newly discovered evidence, or any other statutory ground bearing on the verdict," and has not attempted "to weigh the evidence, as required by section 657 for disturbing the verdict on the basis of insufficiency of the evidence." (*Ibid.*)

C. Legal Standard

"A motion for judgment notwithstanding the verdict may be granted only if it appears from the evidence, viewed in the light most favorable to the party securing the verdict, that there is no substantial evidence in support." (*Sweatman v. Department of Veterans Affairs* (2001) 25 Cal.4th 62, 68.) "The court may not weigh evidence, draw inferences contrary to the verdict, or assess the credibility of witnesses. The court must deny the motion if there is any substantial evidence to support the verdict." (*Palm Medical Group, Inc. v. State Comp. Ins. Fund* (2008) 161 Cal.App.4th 206, 218, quoting *Begnal v. Canfield & Associates, Inc.* (2000) 78 Cal.App.4th 66, 72-73, further citations omitted.)

"'Substantial' refers to the quality, not the quantity, of the evidence." (*DeNike v. Mathew Enterprise, Inc.* (2022) 76 Cal.App.5th 371, 381 (*DeNike*), citing *Roddenberry v. Roddenberry* (1996) 44 Cal.App.4th 634, 651 (*Roddenberry*).) "Inferences may constitute substantial evidence, but they must be the product of logic and reason. Speculation or conjecture alone is not substantial evidence." (*Roddenberry, supra*, at p. 651.) "The testimony of a single witness may constitute substantial evidence as long as it is not physically impossible or inherently improbable." (*DeNike, supra*, at p. 382.)

In ruling on a JNOV motion the court does not weigh the evidence nor determine the credibility of the witnesses. Rather, if "there is any substantial evidence, or reasonable inferences to be drawn therefrom, in support of the verdict, the motion should be denied." (*Hansen v. Sunnyside Products, Inc.* (1997) 55 Cal.App.4th 1497, 1510, cleaned up, quoting *Clemmer v. Hartford Insurance Co.* (1978) 22 Cal.3d 865, 877-878, overruled on other grounds.) "A court must make this assessment without weighing competing evidence." (*Reynolds v. Lau* (2019) 39

Cal.App.5th 953, 957.) “Indeed, we must ‘disregard[] conflicting evidence on behalf of the defendants and giv[e] to plaintiff’s evidence all the value to which it is legally entitled, therein indulging in every legitimate inference which may be drawn from that evidence.’” (*Ibid.*, quoting *Reynolds v. Willson* (1958) 51 Cal.2d 94, 99.)

With respect to motions for a new trial, Code of Civil Procedure, section 657, subdivision (7) provides that the “verdict may be vacated . . . , and a new or further trial granted on all or part of the issues, on the application of the party aggrieved, for any of the following causes, materially affecting the substantial rights of such party: * * * Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law.”

“When a new trial is granted, on all or part of the issues, the court shall specify the ground or grounds upon which it is granted and the court’s reason or reasons for granting the new trial upon each ground stated.” (Code Civ. Proc., § 657.) And, pertinently, a “new trial shall not be granted upon the ground of insufficiency of the evidence to justify the verdict or other decision, . . . , unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that the court or jury clearly should have reached a different verdict or decision.” (*Ibid.*)

D. Discussion

1. *Morris Has Not Demonstrated that a Partial JNOV is Warranted as to Either Defendant*

Morris contends that substantial evidence exists to demonstrate Bernice Basco and Ismael Basco are liable for battery. In support of his arguments, Morris cites the following portions of the rough daily transcript. (See Declaration of Kenneth C. Brooks [Brooks Decl.] exh 1.)

Partial JNOV Motion – Bernice Basco, at p. 2.

FACT 1 – Bernice Basco admits intentionally spraying Robert Morris with pepper spray. See Daily Transcript (DT) July 10, 2026, Page 197, lines 7-12; DT July 13, 2026, page 89, lines 2-7; page 97, lines 17-20.

FACT 2 – Robert Morris made clear that there was no consent to his being peppered sprayed. (DT) July 9, 2026, Page 155, lines 11-14; Page 156, lines 11-18; DT July 13, 2026, page 89, lines 2-7; page 97, lines 17-20.

Partial JNOV Motion – Ismael Basco, at pp. 2-3.

FACT 1 – Ismael Basco admits intentionally pushed Robert Morris with pepper spray [*sic*], see Daily Transcript (DT) July 10, 2026, Page 80, lines 14-19, and may have contact Robert Morris’ head. [*sic*] DT July 10, 2026, Page 131, lines 1-7.

FACT 2 – Robert Morris made clear that there was no consent to his being peppered sprayed. (DT) July 9, 2026, Page 155, lines 11-25; Page 156, lines 11-18; DT July 10, 2026, page 35, lines 1-20; DT July 13, 2026, page 89, lines 2-7; page 97, lines 17-20.

On July 9, 2026 (Brooks Decl., exh. 1, at pp. 116, et seq.), Daily Tr., at page 155:11-25, Morris testified:

And I looked up and I saw her stream -- a clear stream of pepper spray hit me and then instantly I was -- my face was on fire and -- and I was just burning like somebody had taken a blowtorch to my face.”

At page 156:11-18, Morris testified:

“Q. Who do you believe was striking your head?

A. Mr. Basco.

Q. Okay. And why do you believe that?

A. Because the punches were kind of come from his direction. And Mrs. Basco was standing a little further from him with the pepper spray. And I don’t believe the dog was doing it.

On July 10, 2026 (Daily Tr., at p. 89:2-7), Bernice Basco testified:

Mr. Morris actually pepper sprayed you in your face?

A. Yes, he did, in my eye, directly in my eye.

Q. And how long was Mr. Morris pepper spraying you in the eye, if you know?

A. I don’t know. I wasn’t counting the time.

Q. Was it more than two seconds?

A. I don’t know.

Q. What motion was Mr. Morris making with his arm as he was dispensing the pepper spray?

A. I can’t answer that. He was behind me and he’s pepper spraying me. How can I see?

Q. So during the one fluid motion that you testified to before, did you observe Mr. Morris deploying his pepper spray?

A. To whom?

Q. Just in general

A. Just to my husband.

Q. Okay. And how was his arm moving when you observed the pepper spray being deployed on your husband?

On July 13, 2026 (Brooks Decl., exh. 1, at pp. 495, et seq.), Daily Tr., at p. 89:2-7, Bernice Basco testified as follows:

Q. What did you do after you saw Dexter get struck?

A. Like I stated earlier, I got panicked. I got worried. And all I wanted to do was to protect Dexter, and that's why I pepper sprayed Mr. Morris, just to stop the attack.

On July 13, 2026 (Daily Tr., at p. 97:17-20), Bernice Basco further testified as follows:

Q. When you pepper sprayed in the direction of Mr. Morris, what was your intention?

A. Just to stop him from hitting Dexter again, just to stop the whole incident.

Two of the references are irrelevant. One reference to the July 10, 2026 transcript (Brooks Decl., exh. 1, at pp. 348, et seq., Daily Tr. at p. 80:14-19) relates to a 911 phone call Bernice Basco made on July 20, 2021—months before the incident. Page 131 of that transcript is a note from the court reporter regarding the expected differences between the rough and certified transcripts.

None of the referenced testimony supports plaintiff's contention that either defendant admitted to committing a battery on plaintiff. Rather Bernice Basco's testimony demonstrates that she pepper-sprayed Robert Morris to protect her dog, Dexter, and that Morris sprayed her. Ismael Basco testified that he acted to protect his wife.

Morris argues that the evidence demonstrates intentional rather than inadvertent or unintentional conduct, and that this supports his battery claim. He further contends that defendants' argument that their conduct was protective of one another and Dexter, is consistent with his position. Plaintiff disregards that the assertedly protective nature of defendants' conduct supports their affirmative defense of self-defense or defense of another. Having heard all of the evidence, the jury found that, notwithstanding that defendants intentionally touched plaintiff, their actions did not constitute a battery, but amounted to negligence. Plaintiff is essentially attempting to reargue the case he placed before the jury.

Based on its review of the evidence in the case, the court finds that substantial evidence supports the jury's verdict. Accordingly, the motions for partial JNOV are **DENIED**.

2. Morris Has Not Shown that There is any Basis for Granting a New Trial

Morris contends that, if the partial JNOV motions are granted, then the court must grant the new trial to address issues damages, punitive damages, and defendants' affirmative defense of self-defense. As noted above, the court is not granting those motions.

Morris has not identified any evidence that he contends does not support or undermines the verdict when considered in light of the entire record. Rather, having reviewed the record, and the parties' submissions, the court does not find that the "jury clearly should have reached a different verdict." The court therefore denies the motion for a partial new trial.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 3

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**Plaintiff's Motion for Partial Judgment Notwithstanding the Verdict in Favor of Plaintiff Robert Morris and
Against and Ismael Basco Pursuant to Civil Code 629**

TENTATIVE RULING:

See Line 2.
